

		cause of action, this cause of action is uncertain because it combines three causes of action into one. The demurrer to this cause of action is sustained with leave to amend. <u>Fourth cause of action</u> The fourth cause of action is for breach of the implied covenant of good faith and fair dealing. Plaintiff already dismissed this cause of action as to Navigate on March 10, 2026. (ROA 211.) <u>Fifth cause of action</u> The fifth cause of action is for whistleblower retaliation under California labor code § 1102.5. As noted previously, Plaintiff agreed to dismiss this claim. The demurrer to this cause of action is sustained with leave to amend. <u>Sixth cause of action</u> The sixth cause of action is for negligent and intentional infliction of emotional distress. Plaintiff concedes that the claim for negligent infliction of emotional distress should be dismissed. To state a claim for intentional infliction of emotional distress, plaintiff must allege: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050-51.) "A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.' And the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.'" (<i>Ibid.</i>) The SAC does not sufficiently plead outrageous conduct by Navigate that is so extreme as to exceed all bounds of that usually tolerated in a civilized community. The demurrer to this cause of action is sustained with leave to amend. Consistent with the discussion above, this is the first pleadings challenge filed by Navigate on which the Court has ruled. Thus, the Court grants Plaintiff leave to amend. Moving Defendant shall file and serve notice of this ruling.
5	Cao vs. Dang	Defendant Thao Le Phuong Dang moves to set aside the default entered against her on March 11, 2026. For the following reasons, the motion is GRANTED.